

587 U. S.

May 13, 2019

family. Governor Ivey Releases Statement on Stay of Execution for Death Row Inmate Christopher Lee Price (Apr. 12, 2019), <https://governor.alabama.gov/statements/governor-ivey-releases-statement-on-stay-of-execution-for-death-row-inmate-christopher-lee-price>.

No. 18–8300. *EVERETT v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 258 So. 3d 1199.

JUSTICE SOTOMAYOR, dissenting.

I dissent for the reasons set out in *Reynolds v. Florida*, 586 U. S. 1004, 1011 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 18–8332. *ABDUR’RAHMAN ET AL. v. PARKER, COMMISSIONER, TENNESSEE DEPARTMENT OF CORRECTIONS, ET AL.* Sup. Ct. Tenn. Certiorari denied. Reported below: 558 S. W. 3d 606.

JUSTICE SOTOMAYOR, dissenting.

I have already explained my opposition to the “perverse requirement that inmates offer alternative methods for their own executions.” *McGehee v. Hutchinson*, 581 U. S. 933, 935 (2017) (opinion dissenting from denial of application for stay and denial of certiorari); see generally *Glossip v. Gross*, 576 U. S. 863, 969–973 (2015). I have likewise addressed the added perversity of the secrecy laws that Tennessee imposes on death-row prisoners seeking to meet this requirement. See *Zagorski v. Parker*, 586 U. S. 938, 941–942 (2018) (opinion dissenting from denial of application for stay and denial of certiorari) (discussing prisoners’ inability to depose those with firsthand knowledge of the State’s efforts to procure an alternative drug or to learn which sellers the State had contacted).

The Court has recently reaffirmed (and extended) the alternative-method requirement. See *Bucklew v. Precythe*, 587 U. S. 119, 134–140 (2019). And today, the Court again ignores the further injustice of state secrecy laws denying death-row prisoners access to potentially crucial information for meeting that requirement. Because I continue to believe that the alternative-method requirement is fundamentally wrong—and particularly so when compounded by secrecy laws like Tennessee’s—I dissent.

No. 18–8396. *WEIDRICK v. TRUMP, PRESIDENT OF THE UNITED STATES*. C. A. D. C. Cir. Certiorari before judgment denied.

May 13, 2019

587 U. S.

No. 18–8738. *MACHADO-ERAZO ET AL. v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 901 F. 3d 326.

Rehearing Denied

- No. 18–793. *BREWSTER v. UNITED STATES*, 586 U. S. 1127;
No. 18–798. *BLAUCH v. COLORADO*, 586 U. S. 1203;
No. 18–859. *PEEL v. H. E. BUTT GROCERY Co.*, 586 U. S. 1223;
No. 18–869. *LECUONA v. LECUONA*, 586 U. S. 1223;
No. 18–917. *BENT v. TALKIN, MARSHAL, SUPREME COURT OF THE UNITED STATES, ET AL.*, 586 U. S. 1224;
No. 18–5453. *ELLIOTT v. PALMER, WARDEN*, 586 U. S. 923;
No. 18–5818. *KILPATRICK v. KONDAVEETI*, 586 U. S. 989;
No. 18–5819. *KILPATRICK v. FIELDS*, 586 U. S. 989;
No. 18–5833. *KILPATRICK v. VOLTERRA*, 586 U. S. 989;
No. 18–5834. *KILPATRICK v. ROBINSON*, 586 U. S. 989;
No. 18–5877. *STOLTZFOOS v. WETZEL, SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL.*, 586 U. S. 990;
No. 18–5906. *KILPATRICK v. WEISS*, 586 U. S. 1000;
No. 18–5907. *KILPATRICK v. ELIA, COMMISSIONER, NEW YORK STATE DEPARTMENT OF EDUCATION*, 586 U. S. 1000;
No. 18–5908. *KILPATRICK v. ZUCKER, COMMISSIONER, NEW YORK STATE DEPARTMENT OF HEALTH, OFFICE OF PROFESSIONAL MEDICAL CONDUCT*; and *KILPATRICK v. DRESLIN, EXECUTIVE DEPUTY COMMISSIONER, NEW YORK STATE DEPARTMENT OF HEALTH, OFFICE OF PROFESSIONAL MEDICAL CONDUCT*, 586 U. S. 1000;
No. 18–6794. *BRADSHAW v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 586 U. S. 1153;
No. 18–7016. *WASHINGTON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 586 U. S. 1158;
No. 18–7051. *TAYLOR v. CVS CAREMARK CORP.*, 586 U. S. 1159;
No. 18–7063. *IN RE DREAD*, 586 U. S. 1220;
No. 18–7153. *J. E., AKA J. E. C. v. OREGON DEPARTMENT OF HUMAN SERVICES*, 586 U. S. 1163;
No. 18–7191. *PENDERGRAFT ET AL. v. NETWORK OF NEIGHBORS, INC.*, 586 U. S. 1165;

587 U. S.

May 13, 14, 17, 2019

No. 18–7213. DIXIT *v.* BRASHER, JUDGE, SUPERIOR COURT OF GEORGIA, ATLANTA JUDICIAL CIRCUIT, 586 U. S. 1209;

No. 18–7236. STOUTAMIRE *v.* LA ROSE, WARDEN, 586 U. S. 1166;

No. 18–7325. ZINKAND *v.* HERNANDEZ, SUPERINTENDENT, AVERY-MITCHELL CORRECTIONAL INSTITUTION, ET AL., 586 U. S. 1169;

No. 18–7486. MONTE *v.* VANCE ET AL., 587 U. S. 927;

No. 18–7539. ROSSI *v.* THE CROWN, 586 U. S. 1251;

No. 18–7580. NEAL *v.* WAYNE COUNTY TREASURER, 586 U. S. 1252;

No. 18–7601. CHHIM *v.* GOLDEN NUGGETT LAKE CHARLES, L. L. C., 586 U. S. 1234;

No. 18–7755. GARCIA *v.* WILKIE, SECRETARY OF VETERANS AFFAIRS, 586 U. S. 1236;

No. 18–7756. CHAMBERS *v.* SARCONI, 586 U. S. 1252;

No. 18–7790. SIMPSON *v.* COOPER, JUDGE, COURT OF COMMON PLEAS, HAMILTON COUNTY, OHIO, 586 U. S. 1237;

No. 18–7824. KILLINGBECK *v.* UNITED STATES, 586 U. S. 1237;

No. 18–7859. MONSEGUE *v.* UNITED STATES, 586 U. S. 1238;

No. 18–7895. ANDERSON *v.* MICHIGAN, 586 U. S. 1253; and

No. 18–8110. IN RE ANDERSON, 586 U. S. 1220. Petitions for rehearing denied.

MAY 14, 2019

Miscellaneous Order

No. 18–9031 (18A1120). IN RE SAMRA. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

Certiorari Denied

No. 18–9033 (18A1121). SAMRA *v.* ALABAMA. Sup. Ct. Ala. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

MAY 17, 2019

Dismissal Under Rule 46

No. 16–317. DEUTSCHE BANK TRUST COMPANY AMERICAS ET AL. *v.* ROBERT R. MCCORMICK FOUNDATION ET AL. C. A. 2d Cir. Certiorari dismissed under this Court’s Rule 46.

MAY 20, 2019

Certiorari Granted—Vacated and Remanded

No. 17–1348. NEVADA DEPARTMENT OF WILDLIFE *v.* SMITH. Ct. App. Cal., 3d App. Dist. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230 (2019).

No. 18–7096. SANTOS *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of the position asserted by the Solicitor General in his brief for the United States filed on March 21, 2019.

JUSTICE ALITO, with whom JUSTICE THOMAS joins, dissenting.

The Court grants, vacates, and remands in this case, apparently because it harbors doubt that petitioner’s 1987 conviction under Florida law for battery on a law enforcement officer qualifies as a “violent felony” as defined by the Armed Career Criminal Act’s elements clause, which covers a felony offense that “has as an element the use, attempted use, or threatened use of physical force against the person of another.” 18 U. S. C. § 924(e)(2)(B)(i). I share no such doubt: As the case comes to us, it is undisputed that petitioner was convicted of battery on a law enforcement officer after he “‘struck [an] officer in the face using a closed fist.’” App. to Pet. for Cert. A–1, p. 11. See Fla. Stat. § 784.03(1)(a) (2018) (a person commits battery when he “[a]ctually and intentionally touches or strikes another person against the will of the other,” among other things). Because the record makes “perfectly clear” that petitioner “was convicted of battery on a law enforcement officer by striking, which involves the use of physical force against the person of another,” App. to Pet. for Cert. A–1, at 11, I would count the conviction as a “violent felony” under the elements clause and would therefore deny the petition. *Mathis v. United States*, 579 U. S. 500, 537 (2016) (ALITO, J., dissenting).

Miscellaneous Orders

No. 18A1062 (18–1164). *IN RE GIORDANI*. Application for stay, addressed to JUSTICE KAVANAUGH and referred to the Court, denied.

587 U. S.

May 20, 2019

No. 18M154. BREWINGTON *v.* OKLAHOMA; and
No. 18M156. BOWLES *v.* FLORIDA DEPARTMENT OF CORRECTIONS ET AL. Motions for leave to proceed as veterans denied.

No. 18M155. MOODY *v.* BALTIMORE CITY DEPARTMENT OF SOCIAL SERVICES;

No. 18M157. PIDANICK *v.* MADDALONI ET AL.;

No. 18M158. ROBINSON *v.* HALL;

No. 18M159. JACKSON *v.* FERGUSON, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT PHOENIX, ET AL.; and

No. 18M161. CRYSTAL M. *v.* RHODE ISLAND DEPARTMENT OF CHILDREN, YOUTH AND FAMILIES. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 18M160. MOORE ET AL. *v.* POMPEO, SECRETARY OF STATE, ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court's Rule 14.5 denied.

No. 18–725. BARTON *v.* BARR, ATTORNEY GENERAL. C. A. 11th Cir. [Certiorari granted, 587 U.S. 960.] Motion of petitioner to dispense with printing joint appendix granted.

No. 18–8407. SAVOY *v.* BURNS ET AL. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until June 10, 2019, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 18–8967. IN RE BRINSON. Petition for writ of habeas corpus denied.

No. 18–9035. IN RE AVERY. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U.S. 1 (1992) (*per curiam*).

No. 18–1196. IN RE KINNEY ET UX. Petition for writ of mandamus denied.

May 20, 2019

587 U. S.

Certiorari Granted

No. 18–938. RITZEN GROUP, INC. *v.* JACKSON MASONRY, LLC. C. A. 6th Cir. Certiorari granted. Reported below: 906 F. 3d 494.

Certiorari Denied

No. 18–672. CITY OF NEWPORT BEACH, CALIFORNIA, ET AL. *v.* VOS ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 892 F. 3d 1024.

No. 18–733. 1A AUTO, INC., ET AL. *v.* SULLIVAN, DIRECTOR, MASSACHUSETTS OFFICE OF CAMPAIGN AND POLITICAL FINANCE. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 480 Mass. 423, 105 N. E. 3d 1175.

No. 18–810. MAGUIRE ET AL. *v.* EDREI ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 892 F. 3d 525.

No. 18–827. SHABO *v.* BARR, ATTORNEY GENERAL. C. A. 6th Cir. Certiorari denied. Reported below: 892 F. 3d 237.

No. 18–853. UNITED PARCEL SERVICE, INC. *v.* POSTAL REGULATORY COMMISSION. C. A. D. C. Cir. Certiorari denied. Reported below: 890 F. 3d 1053.

No. 18–873. CASINO PAUMA *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 9th Cir. Certiorari denied. Reported below: 888 F. 3d 1066.

No. 18–941. DAVIS, CHAPTER 13 TRUSTEE *v.* TYSON PREPARED FOODS, INC. C. A. 10th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 163.

No. 18–1010. HAGAN ET AL. *v.* KHOJA. C. A. 9th Cir. Certiorari denied. Reported below: 899 F. 3d 988.

No. 18–1049. HOFFMAN ET AL. *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 901 F. 3d 523.

No. 18–1056. JOHANKNECHT, SHERIFF, KING COUNTY, WASHINGTON *v.* MOORE ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 899 F. 3d 1094.

No. 18–1057. VON SAHER *v.* NORTON SIMON MUSEUM OF ART AT PASADENA ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 897 F. 3d 1141.

587 U.S.

May 20, 2019

No. 18–1061. *GRAVISS v. DEPARTMENT OF DEFENSE, DOMESTIC DEPENDENT ELEMENTARY AND SECONDARY SCHOOLS*. C. A. Fed. Cir. Certiorari denied. Reported below: 898 F. 3d 1222.

No. 18–1173. *I. B. ET AL. v. WOODARD ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 912 F. 3d 1278.

No. 18–1187. *MIORELLI ET AL. v. ROYAL CARIBBEAN CRUISE LINES, LTD.* C. A. 11th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 871.

No. 18–1193. *MOON v. COUNTY OF EL PASO, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 906 F. 3d 352.

No. 18–1200. *FLUID DYNAMICS, LLC v. JEA, FKA JACKSONVILLE ELECTRIC AUTHORITY*. C. A. 11th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 924.

No. 18–1202. *MONTALVO v. OHIO*. Ct. App. Ohio, 5th App. Dist., Knox County. Certiorari denied. Reported below: 2018-Ohio-3142.

No. 18–1205. *LEISER ET AL. v. LEMON, CHIEF JUSTICE, SUPREME COURT OF VIRGINIA, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 841.

No. 18–1208. *TURNER v. MIDDLE RIO GRANDE CONSERVANCY DISTRICT ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 715.

No. 18–1209. *BONACCI v. TRANSPORTATION SECURITY ADMINISTRATION*. C. A. D. C. Cir. Certiorari denied. Reported below: 909 F. 3d 1155.

No. 18–1215. *KANOFSKY v. CITY OF BETHLEHEM, PENNSYLVANIA*. Commw. Ct. Pa. Certiorari denied. Reported below: 175 A. 3d 467.

No. 18–1221. *HUNT v. GOODRICH ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–1226. *CLINTON COUNTY CHILDREN AND YOUTH SERVICES v. A. A. R., NATURAL MOTHER, ET AL.* Sup. Ct. Pa. Certiorari denied. Reported below: 650 Pa. 266, 199 A. 3d 868.

No. 18–1227. *KANOFSKY v. PENNSYLVANIA*. Commw. Ct. Pa. Certiorari denied. Reported below: 174 A. 3d 1209.

May 20, 2019

587 U. S.

No. 18–1228. *BRUNDO v. CHRIST THE KING CHURCH OF OMAHA*. C. A. 8th Cir. Certiorari denied.

No. 18–1232. *ZEINY v. UNITED STATES ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–1237. *GOUNDER v. GRIPPA ET AL.* Ct. App. N. Y. Certiorari denied. Reported below: 32 N. Y. 3d 1040, 113 N. E. 3d 453.

No. 18–1239. *HAVASUPAI TRIBE v. PROVENCIO ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 906 F. 3d 1155.

No. 18–1241. *JACKSON v. OHIO*. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2018-Ohio-3492.

No. 18–1243. *MONTOKA-AGUILAR v. BARR, ATTORNEY GENERAL*. C. A. 3d Cir. Certiorari denied. Reported below: 741 Fed. Appx. 129.

No. 18–1244. *PICKUP ET AL. v. NEWSOM, GOVERNOR OF CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–1275. *XIAOHUA HUANG v. HUAWEI TECHNOLOGIES CO., LTD.* C. A. Fed. Cir. Certiorari denied. Reported below: 735 Fed. Appx. 715.

No. 18–1294. *LYNCH ET UX. v. DEUTSCHE BANK NATIONAL TRUST CO. ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 920.

No. 18–1304. *ASHBAUGH v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 736 Fed. Appx. 425.

No. 18–1313. *MORAN v. CALIFORNIA*. C. A. 9th Cir. Certiorari denied.

No. 18–1321. *ATES v. GREWAL, ATTORNEY GENERAL OF NEW JERSEY, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–6907. *KULICK v. LEISURE VILLAGE ASSN., INC.* C. A. 9th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 459.

No. 18–7414. *FREENEY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 737 Fed. Appx. 198.

587 U.S.

May 20, 2019

No. 18–7444. *TALADA v. COLE, SHERIFF, STEUBEN COUNTY JAIL*. C. A. 2d Cir. Certiorari denied. Reported below: 739 Fed. Appx. 73.

No. 18–7471. *HENRY, AKA WEIDA ZHENG, AKA RUSSEL, AKA WILSON, AKA ZHONG v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 888 F. 3d 589.

No. 18–7530. *UDOH ET VIR v. MINNESOTA DEPARTMENT OF HUMAN SERVICES ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 735 Fed. Appx. 906.

No. 18–8408. *MCCRAY v. DRISCOLL ET AL.* Ct. Sp. App. Md. Certiorari denied. Reported below: 239 Md. App. 719 and 725.

No. 18–8418. *WADDLETON v. RODRIGUEZ ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 248.

No. 18–8450. *CARDER v. CALIFORNIA*. Ct. App. Cal., 5th App. Dist. Certiorari denied.

No. 18–8454. *SCOTT v. GOODWIN, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 18–8457. *SMITH v. WASHINGTON*. Ct. App. Wash. Certiorari denied.

No. 18–8461. *WILLIAMSON v. BOYER, JUDGE, CIRCUIT COURT OF FLORIDA, FOURTH JUDICIAL CIRCUIT*. C. A. 11th Cir. Certiorari denied.

No. 18–8462. *TRUESDALE v. FLORIDA ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–8465. *KUNSMAN v. WALL*. C. A. 11th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 938.

No. 18–8478. *HALOUSEK v. YUBA COUNTY ANIMAL CARE SERVICES*. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 18–8480. *FUNK v. MONTANA*. Sup. Ct. Mont. Certiorari denied.

No. 18–8483. *AGOSTO v. MILLER, SUPERINTENDENT, GREAT MEADOW CORRECTIONAL FACILITY*. C. A. 2d Cir. Certiorari denied.

No. 18–8484. *BAILEY v. FOXWELL, WARDEN, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 734 Fed. Appx. 208.

May 20, 2019

587 U. S.

No. 18–8491. *FLOWERS v. URIARTE ET AL.* Sup. Ct. Fla. Certiorari denied.

No. 18–8502. *ALEXANDER v. REWERTS, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–8516. *DRUMMOND v. OHIO.* Sup. Ct. Ohio. Certiorari denied. Reported below: 154 Ohio St. 3d 1456, 2018-Ohio-5085, 113 N. E. 3d 562.

No. 18–8527. *RIVERA v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–8538. *SPEARMAN v. PARSON ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–8542. *S. N. ET AL. v. SAN DIEGO HEALTH AND HUMAN SERVICES AGENCY ET AL.* Ct. App. Cal., 4th App. Dist., Div. 1. Certiorari denied.

No. 18–8544. *MYLES v. FLORIDA.* Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 260 So. 3d 266.

No. 18–8548. *BELSER v. WOODS ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–8553. *HICKS v. DALLAS COUNTY COMMUNITY COLLEGES.* C. A. 5th Cir. Certiorari denied.

No. 18–8564. *HEATH v. BRAMAN, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 18–8638. *BENNEFIELD v. GEORGIA.* Sup. Ct. Ga. Certiorari denied. Reported below: 304 Ga. 491, 819 S. E. 2d 10.

No. 18–8646. *HAMPTON v. McLAUGHLIN, WARDEN.* Sup. Ct. Ga. Certiorari denied.

No. 18–8655. *HOLLOWAY v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION.* C. A. 8th Cir. Certiorari denied.

No. 18–8759. *JUAREZ-AQUINO v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 735 Fed. Appx. 337.

No. 18–8761. *JONES v. CALIFORNIA.* Ct. App. Cal., 5th App. Dist. Certiorari denied.

587 U.S.

May 20, 2019

No. 18–8763. *WALKER v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 905 F. 3d 1026.

No. 18–8777. *GOULD v. NORTH CAROLINA*. Sup. Ct. N. C. Certiorari denied. Reported below: 371 N. C. 474, 818 S. E. 2d 290.

No. 18–8792. *CHEERS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 272.

No. 18–8798. *LYNCH v. MILES, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8810. *MARTINEZ-NEGRETE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 967.

No. 18–8814. *PERALES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 258.

No. 18–8821. *SEALED APPELLANT v. SEALED APPELLEE*. C. A. 5th Cir. Certiorari denied.

No. 18–8825. *HEDSPETH v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 236.

No. 18–8830. *CESAR DE LA ROSA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 759 Fed. Appx. 318.

No. 18–8831. *CONTRERAS VARGAS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–8833. *DEASE v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 18–8834. *AMAYA-VASQUEZ v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 760 Fed. Appx. 78.

No. 18–8842. *NIXON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 995.

No. 18–8843. *MILNE v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 739.

No. 18–8852. *SANDERS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 18–8856. *ESTUPINAN MICOLTA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

May 20, 2019

587 U. S.

No. 18–8865. *LOPEZ-AGUILAR v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 912 F. 3d 1327.

No. 18–8868. *BUTLER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–8885. *ROMAN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 969.

No. 18–8891. *CRIDER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–8893. *BROWN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 678.

No. 18–8894. *MAYFIELD v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 909 F. 3d 956.

No. 18–8898. *CAMPBELL v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 476.

No. 18–8900. *GARCIA HERRERA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 539.

No. 18–8902. *KLOSZEWSKI v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 760 Fed. Appx. 12.

No. 18–8920. *GLASSCOCK v. TAYLOR*. C. A. 9th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 566.

No. 18–8975. *SMILEY v. MUNIZ, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 735 Fed. Appx. 341.

No. 18–460. *DANIEL, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF DANIEL v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. JUSTICE GINSBURG would grant the petition for writ of certiorari. Reported below: 889 F. 3d 978.

JUSTICE THOMAS, dissenting.

Petitioner Walter Daniel filed this tort suit against the United States after his wife, Navy Lieutenant Rebekah Daniel, died at a naval hospital due to a complication following childbirth. The District Court determined that the suit was barred by *Feres v. United States*, 340 U. S. 135 (1950), which held that military personnel injured by the negligence of a federal employee cannot

587 U. S.

May 20, 2019

sue the United States under the Federal Tort Claims Act. The Court of Appeals “regretfully” reached the same conclusion and affirmed. 889 F. 3d 978, 980 (CA9 2018).

Petitioner now asks the Court to reconsider *Feres*. I have explained before that “*Feres* was wrongly decided and heartily deserves the widespread, almost universal criticism it has received.” *Lanus v. United States*, 570 U. S. 932, 933 (2013) (opinion dissenting from denial of certiorari) (quoting *United States v. Johnson*, 481 U. S. 681, 700 (1987) (Scalia, J., dissenting)). I write again to point out the unintended consequences of this Court’s refusal to revisit *Feres*.

Earlier this Term, in *Air & Liquid Systems Corp. v. DeVries*, 586 U. S. 446 (2019), we confronted the case of two veterans who alleged that their exposure to asbestos caused them to develop cancer. *Id.*, at 450. Both veterans served in the U. S. Navy on ships outfitted with equipment that used asbestos insulation or parts. *Id.*, at 449. The manufacturers of that equipment delivered much of it to the Navy in “bare-metal” condition, *i. e.*, without asbestos, meaning that the Navy added the asbestos to the equipment after delivery. *Id.*, at 451. Neither veteran was exposed to any asbestos sold or delivered by the equipment manufacturers, as opposed to asbestos added by the Navy. See *id.*, at 450, and n. 1. Yet because the Navy was likely immune from suit under *Feres*, the veterans sued the manufacturers. 586 U. S., at 450. This Court then twisted traditional tort principles to afford them the possibility of relief. *Id.*, at 458–460 (GORSUCH, J., dissenting).

Such unfortunate repercussions—denial of relief to military personnel and distortions of other areas of law to compensate—will continue to ripple through our jurisprudence as long as the Court refuses to reconsider *Feres*. Had Congress itself determined that servicemembers cannot recover for the negligence of the country they serve, the dismissal of their suits “would (insofar as we are permitted to inquire into such things) be just.” *Johnson, supra*, at 703 (Scalia, J., dissenting). But it did not. Accordingly, I respectfully dissent from the Court’s decision to deny this petition.

No. 18–756. GITTERE, WARDEN, ET AL. *v.* ECHAVARRIA. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 896 F. 3d 1118.

May 20, 2019

587 U. S.

No. 18–981. JONES ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 733 Fed. Appx. 903.

JUSTICE THOMAS, dissenting.

I dissent for the reasons set out in *Daniel v. United States*, 587 U.S. 1020 (2019) (THOMAS, J., dissenting from denial of certiorari).

No. 18–1181. SHOOP, WARDEN *v.* ISSA. C. A. 6th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 904 F. 3d 446.

No. 18–1212. PAPPAS *v.* LORINTZ, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY AS SUPREME COURT JUDGE OF NEW YORK, ET AL. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

No. 18–8822. REYNOLDS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition. Reported below: 740 Fed. Appx. 3.

Rehearing Denied

No. 18–930. BRANDON *v.* BRANDON, 586 U. S. 1248;

No. 18–1025. LEON *v.* NEW YORK CITY DEPARTMENT OF EDUCATION ET AL., 586 U. S. 1248;

No. 18–1031. LITTLE *v.* CSRA ET AL., 587 U. S. 938;

No. 18–1103. EVANS *v.* UNITED STATES, 587 U. S. 920;

No. 18–7322. YERTON *v.* BRYANT, WARDEN, 586 U. S. 1229;

No. 18–7564. HOWARD *v.* JONES, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, 586 U. S. 1252;

No. 18–7591. KYEI *v.* SWIFT ET AL., 587 U. S. 921;

No. 18–7667. TAYLOR *v.* VANNOY, WARDEN, 586 U. S. 1202;

No. 18–7690. BELL *v.* LEIGH ET AL., 587 U. S. 923;

No. 18–7731. CIAVONE *v.* HORTON, WARDEN, 587 U. S. 924;

No. 18–7794. KROTT *v.* MAY, WARDEN, ET AL., 586 U. S. 1213;

No. 18–7876. CALLAHAN *v.* UNITED STATES, 586 U. S. 1253;

No. 18–8024. RODRIGUEZ *v.* NEW JERSEY, 587 U. S. 962;

No. 18–8038. BURKE *v.* UNITED STATES, 586 U. S. 1256;

No. 18–8062. TAYLOR *v.* DISTRICT OF COLUMBIA DEPARTMENT OF EMPLOYMENT SERVICES, 587 U. S. 947;

No. 18–8112. BROWN *v.* UNITED STATES, 586 U. S. 1258;

587 U. S.

May 20, 21, 23, 24, 2019

No. 18–8246. IN RE JACKSON, 586 U. S. 1247; and

No. 18–8315. DREVALEVA *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA, 587 U. S. 951. Petitions for rehearing denied.

MAY 21, 2019

Dismissal Under Rule 46

No. 18–1246. BNSF RAILWAY CO. ET AL. *v.* MONTANA EIGHTH JUDICIAL DISTRICT COURT, CASCADE COUNTY, ET AL. Sup. Ct. Mont. Certiorari dismissed under this Court’s Rule 46. Reported below: 395 Mont. 524, 437 P. 3d 115.

MAY 23, 2019

Certiorari Denied

No. 18–9356 (18A1200). LONG *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

No. 18–9358 (18A1202). LONG *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 271 So. 3d 938.

No. 18–9396 (18A1216). LONG *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 924 F. 3d 1171.

MAY 24, 2019

Miscellaneous Orders

No. 18A1165. HOUSEHOLDER ET AL. *v.* OHIO A. PHILIP RANDOLPH INSTITUTE ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Southern District of Ohio, case No. 1:18–CV–00357, entered May 3, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.

May 24, 2019

587 U. S.

No. 18A1166. CHABOT ET AL. *v.* OHIO A. PHILIP RANDOLPH INSTITUTE ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Southern District of Ohio, case No. 1:18-CV-00357, entered May 3, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.

No. 18A1170. MICHIGAN SENATE ET AL. *v.* LEAGUE OF WOMEN VOTERS OF MICHIGAN ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Eastern District of Michigan, case No. 2:17-CV-14148, entered April 25, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.

No. 18A1171. CHATFIELD ET AL. *v.* LEAGUE OF WOMEN VOTERS OF MICHIGAN ET AL. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, granted, and it is ordered that the order of the United States District Court for the Eastern District of Michigan, case No. 2:17-CV-14148, entered April 25, 2019, is stayed pending the timely filing and disposition of an appeal in this Court or further order of this Court.